IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.69289 of 2026

CNR No. BRHC010924702026

Arising Out of PS. Case No.-535 Year-2026 Thana- BIHTA District- Patna

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Vishal Kumar S/o Sunil Singh @ Sunal Singh R/o Village- Dilawarpur, P.S.- IIT Amhara, District- Patna

... ... Petitioner/s

Versus

The State of Bihar

... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Ms. Prerna Rishi, Advocate
For the Opposite Party/s : Mr. Anil Kumar, A.P.P

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CORAM: HONOURABLE MR. JUSTICE ALOK KUMAR

ORAL ORDER

3 15-10-2026 Heard learned counsel for the petitioner and the learned A.P.P. for the State.

2. The petitioner seeks regular bail in connection with Bihta P.S. Case No. 535 of 2026 lodged on 27.05.2026, for the offences punishable under Sections 25(1-B)(a), 26 and 35 of the Arms Act, 1959.

3. The prosecution case, in brief, is that acting on a secret information that an active member of the Daya Dubey gang, the petitioner herein, was present in Dilawarpur village to arrange hideouts and weapons for gang members, a police team from Bihta station rushed to the location. It is alleged that the police apprehended the petitioner from his house, and upon intense interrogation later that night, he confessed to being part

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of the gang and disclosed that weapons and ammunition were hidden behind Thakur Prasad School on Bihta Lai Road. It is further alleged that led by the accused's disclosure, the police team searched the bushes behind the school in the presence of official witnesses and recovered a country-made country pistol along with two live cartridges.

4. The learned counsel for the petitioner submits that the petitioner is innocent and has falsely been implicated in this case. Learned counsel for the petitioner further submits that the petitioner has clean antecedents and is in custody since 28.05.2026. The learned counsel also submits that nothing has been recovered from the conscious possession of the petitioner. The counsel lastly submits that charge-sheet has been submitted.

5. The learned APP for the State vehemently opposed the prayer for bail of the petitioner.

6. Having heard the parties and taking into consideration the fact that the petitioner has clean antecedents, has been in custody since 28.05.2026 and that the charge-sheet has been submitted, let the above named petitioner be released on bail on furnishing bail bonds of Rs.10,000/- (Rupees Ten Thousand) with two sureties of the likewise amount each to the satisfaction of learned A.C.J.M-II, Danapur, Patna in connection

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with Bihta P.S. Case No. 535 of 2026, subject to the following conditions:

(I) One of the bailors shall be the petitioner's own or close family member.

(II) The petitioner shall co-operate in the process of trial.

(III) The petitioner shall not tamper with the prosecution evidence or influence/intimidate any witness during the course of trial.

(IV) The Petitioner shall not commit offence of a similar nature in future.

In case of violation of any of the aforesaid conditions, the Trial Court shall be at liberty to cancel the bail bonds of the petitioner.

(Alok Kumar, J)

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